

CHAPTER 22.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [8th August 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) For the purpose of local loans there may be issued by the National Debt Commissioners the following sums, namely :— Grants for public works.

(a) For the purpose of loans by the Public Works Loan Commissioners, any sum or sums not exceeding in the whole the sum of six million pounds ;

(b) For the purpose of loans by the Commissioners of Public Works in Ireland, any sum or sums not exceeding in the whole the sum of eight hundred thousand pounds.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

50 & 51 Vict.
c. 16.

2. Whereas it is expedient that the principal of the several local loans specified in the schedule to this Act should, to the extent specified in the last column of that schedule, not be reckoned as assets of the local loans fund established under the National Debt and Local Loans Act, 1887 ; therefore the principal of the said loans shall, to that extent, be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

Certain debts not to be reckoned as assets of local loans fund.
50 & 51 Vict.
c. 16.

3. Whereas there is due to the Public Works Loan Commissioners from the Wick and Pulteney Harbour Trustees the sum of fifty-seven thousand eight hundred and twenty-one pounds thirteen shillings and twopence, being the balance of sums, amounting in all to sixty-two thousand pounds, which, during the years one thousand eight hundred and sixty-eight, one thousand eight hundred and sixty-nine, one thousand eight hundred and seventy-one and one thousand eight hundred and seventy-three, were advanced by the Public Works Loan Commissioners to the British Fisheries Society, then the harbour authority for the harbour of Pulteney, in the county of Caithness, towards the expense of constructing a breakwater and other works in connexion with the said harbour, which works were carried out at a total cost of about one hundred and thirty thousand pounds, but were demolished by the action of the sea within a few years after their construction ;

Remission of certain claims against Wick and Pulteney Harbour Trustees.

And whereas the said sum of fifty-seven thousand eight hundred and twenty-one pounds thirteen shillings and twopence was, under the Public Works Loans Act, 1887, written off from the account of the assets of the Local Loans Fund ;

50 & 51 Vict.
c. 37.

And whereas the revenue of the said harbour is insufficient to discharge the said debt, and the existence of the debt prejudices the harbour trustees in carrying out necessary works for the improvement of the harbour, and it is expedient that the said debt should be extinguished :

Therefore the said debt, including all claims for interest thereon, shall be extinguished, and the amount thereof shall be deemed a free grant from Parliament.

Remission of
balance of loan
and arrears of
interest due
from the
Waterford,
Dungarvan
and Lismore
Railway
Company.

4. Whereas the Commissioners of Public Works in Ireland, between the years one thousand eight hundred and seventy-seven and one thousand eight hundred and eighty-six, made advances amounting in all to the sum of ninety-three thousand two hundred and seventy pounds sixteen shillings and eightpence to the Waterford, Dungarvan and Lismore Railway Company, for the purpose of completing the construction of their railway running between the city of Waterford and the town of Lismore, both situated in the county of Waterford, and such advances were repayable by instalments within twenty years, with interest at the rate of four per cent. per annum ;

And whereas the receipts of the railway when completed proved insufficient to meet the capital instalments and interest, and arrears of interest, amounting to fifty-four thousand five hundred and ninety-nine pounds thirteen shillings and one penny, accrued up to the thirtieth day of June one thousand eight hundred and ninety-eight, and are unpaid ;

61 & 62 Vict.
c. ccliii.

And whereas, by the Fishguard and Rosslare Railways and Harbours Act, 1898, an agreement for sale of said railway by the Treasury to the Fishguard and Rosslare Railway Company, freed of all claims in respect of said advances for principal and interest, for the sum of ninety-three thousand pounds, was confirmed, and the said purchase money has been since paid :

Therefore the balance of the said principal debt, amounting to two hundred and sixty pounds sixteen shillings and eightpence, shall be extinguished, and the said arrears of interest remaining unpaid, amounting to fifty-four thousand five hundred and ninety-nine pounds thirteen shillings and one penny, remitted, and the said balance of principal and the said arrears of interest shall be deemed to be a free grant by Parliament.

Remission of
balance of loan
and arrears
of interest
due from the
Derry Central
Railway
Company.

5. Whereas the Commissioners of Public Works in Ireland, between the years one thousand eight hundred and seventy-eight and one thousand eight hundred and eighty-one, made advances amounting in all to the sum of one hundred thousand pounds to the Derry Central Railway Company, for the purpose of completing the construction of their railway connecting the town of Magherafelt with the town of Coleraine, both situated in the county of Londonderry, and such advances were repayable by instalments within twenty-two years, with interest at the rate of five per cent. (subsequently reduced to four per cent.) per annum ;

And whereas the receipts of the railway proved insufficient to meet the capital instalments and interest, and arrears of interest, amounting to thirty-three thousand and twenty-six pounds eleven

shillings and one penny, accrued due up to the twentieth day of September nineteen hundred and one, and are unpaid ;

And whereas, by the Belfast and Northern Counties Railway ^{1 Edw. 7.} Act, 1901, an agreement for sale of said railway by the Treasury ^{c. cclix.} to the Belfast and Northern Counties Railway Company, freed of all claims in respect of said advances for principal or interest, for the sum of eighty-five thousand pounds, was confirmed, and said purchase money has been since paid :

Therefore the balance of the said principal debt, amounting to fifteen thousand pounds, shall be extinguished, and the said arrears of interest remaining unpaid and amounting to thirty-three thousand and twenty-six pounds eleven shillings and one penny remitted, and the said balance of principal and the said arrears of interest shall be deemed to be a free grant by Parliament.

6. This Act may be cited as the Public Works Loans Act, Short title. 1902.

SCHEDULE.

PART I.

LOAN BY THE PUBLIC WORKS LOAN COMMISSIONERS.

LOAN UNDER THE LABOURING CLASSES DWELLING HOUSES ACT, 1866 (29 & 30 VICT. C. 28).

Name of Borrower.	Amount of Loan.	Amount to be Written off.
	£ s. d.	£ s. d.
Richard Lawrence Cosh - -	12,000 0 0	3,101 5 0

PART II.

LOANS BY THE COMMISSIONERS OF PUBLIC WORKS, IRELAND.

(1.) LOANS UNDER THE LANDED PROPERTY IMPROVEMENT (IRELAND) ACT, 1847 (10 VICT. C. 32).

Name of Borrower.	Amount of Loan.	Amount to be Written off.
	£ s. d.	£ s. d.
James Gordon - - - -	120 0 0	2 10 0
Honora Cahill - - - -	60 0 0	31 14 9
	180 0 0	34 4 9

(2.) LOANS UNDER THE LAND LAW (IRELAND) ACT, 1881
(44 & 45 VICT. C. 49. S. 31).

Name of Borrower.	Amount of Loan.	Amount to be Written off.
	£ s. d.	£ s. d.
James Hughes	180 0 0	116 10 6
John Moore	50 0 0	28 18 5
Bartholomew Sullivan	55 0 0	36 2 5
Denis Sullivan	80 0 0	36 10 7
Francis Finn	30 0 0	16 3 6
Denis Courtney	56 0 0	40 16 0
John Bane	50 0 0	37 2 7
William Wright	50 0 0	49 4 6
William Wright	100 0 0	97 13 4
	651 0 0	459 1 10

(3.) LOANS UNDER THE PUBLIC WORKS (IRELAND) ACT, 1831
(1 & 2 WILL. 4. C. 33), AND THE PUBLIC WORKS LOANS
(IRELAND) ACT, 1877 (40 & 41 VICT. C. 27).

Name of Borrower.	Amount of Loan.	Amount to be Written off.
	£ s. d.	£ s. d.
Waterford, Dungarvan and Lismore Railway Company.	93,270 16 8	260 16 8
Derry Central Railway Company .	100,000 0 0	15,000 0 0
	193,270 16 8	15,260 16 8

PART III.

LOAN BY THE IRISH LAND COMMISSION UNDER THE PURCHASE OF
LAND (IRELAND) ACT, 1885 (48 & 49 VICT. C. 73).

Name of Borrower.	Amount Advanced.	Amount to be Written off.
	£ s. d.	£ s. d.
John O'Brien	666 0 0	470 16 7

PART IV.

LOANS BY THE FISHERY BOARD FOR SCOTLAND.

LOANS UNDER THE CROFTERS HOLDINGS (SCOTLAND) ACT, 1886
(49 & 50 VICT. c. 29).

Names and Addresses of Borrowers.	Fishery District.	Amount of Loan.	Amount to be Written off.
Norman Cunningham, John Cunningham, and Neil Cunningham, all of Scalpay, Tarbert, Harris.	Stornoway -	£ 30	£ s. d. 14 16 1
Murdo Mackay, William Mackenzie, Angus Macdonald, Malcolm Murray, and Torquil Macdonald, all of Sulishader; and Murdo McSween, Garrabost, Stornoway.	Stornoway -	234	17 5 11

CHAPTER 23.

An Act to amend the Law with respect to Customs Duties in the Isle of Man. [8th August 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The additional duties of Customs on tobacco, tea and spirits removed or imported into the Isle of Man, imposed by section one of the Isle of Man (Customs) Act, 1900, and the additional duty on ale and beer removed or imported into the Isle of Man, imposed by the second paragraph of section two of that Act, shall continue to be charged, levied and paid as from the first day of August one thousand nine hundred and two until the first day of August one thousand nine hundred and three.

Continuation of additional duties on tobacco, tea, spirits, ale and beer. 63 & 64 Vict. c. 31.

2. This Act may be cited as the Isle of Man (Customs) Act, 1902.

CHAPTER 24.

An Act to facilitate the execution and maintenance of Marine Works in Ireland, and for other like purposes.

[8th August 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: